

Court No. - 29

Case :- WRIT - C No. - 52999 of 2016

Petitioner :- Vishwanath Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Satyendra Sharma

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Pramod Kumar Srivastava, J.

Heard the learned counsel for the parties.

Against the issuance of the electricity bill of Rs.77,595/-, the petitioner filed Writ Petition No. 45126 of 2013, which was disposed of by an order dated 02.09.2013 directing the petitioner to make an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Instead of filing an application for correction of the bill, the petitioner filed an application for re-connection of the electricity and has now filed the present writ petition praying that no coercive measure should be taken pursuant to the demand notice dated 23rd July, 2016 for recovery of the amount of Rs.86,136/-, which is apparently in pursuance to the same electricity bill, against which, the petitioner had filed earlier writ petition. The second writ petition for the same cause of action is not maintainable and is dismissed as such.

Order Date :- 7.11.2016

YK

(Pramod Kumar Srivastava, J.) (Tarun Agarwala, J.)